

STATE OF NORTH CAROLINA

COUNTY OF VANCE

The Vance County Board of Commissioners met in regular session on Monday, October 7, 2019 at 6:00 p.m. in the Commissioners' Conference Room, Vance County Administration Building, 122 Young Street, Henderson, NC. Those Commissioners present were as follows: Chairman Archie B. Taylor, Jr., Vice-Chairman Gordon Wilder, Commissioners Dan Brummitt, Carolyn Faines, Yolanda J. Feimster, Thomas S. Hester, Jr., and Leo Kelly, Jr.

Absent: None.

Also present were County Manager Jordan McMillen, Finance Director Katherine Bigelow, County Attorney Jonathan S. Care, and Clerk to the Board Kelly H. Grissom.

Pastor Joel Beckham, New Life Baptist Church, gave the invocation.

As advertised, a public hearing was held to receive citizen input on a proposed amendment to the Vance County Zoning Ordinance pertaining to adding regulations for Land Clearing and Inert Debris Landfills (LCIDs). As there was no one present who wished to speak on this matter, Chairman Archie B. Taylor, Jr. declared the public hearing closed.

Motion was made by Commissioner Dan Brummitt, seconded by Commissioner Carolyn Faines, vote unanimous, to approve the following ordinance amending the Vance County Zoning Ordinance to add land clearing inert debris landfill, minor and major, to Section 12 of the Zoning Ordinance definitions, to Section 3, permitted use table, and to Section 6.10(G) conditional use minimum development requirements.

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**ORDINANCE AMENDING THE VANCE COUNTY ZONING ORDINANCE TO  
ADD LAND CLEARING INERT DEBRIS LANDFILL, MINOR AND MAJOR, TO  
SECTION 12 OF THE ZONING ORDINANCE DEFINITIONS, TO SECTION 3,  
PERMITTED USE TABLE, AND TO SECTION 6.10 (G) CONDITIONAL USE  
MINIMUM DEVELOPMENT REQUIREMENTS**

**WHEREAS**, the Vance County Planning Board has reviewed the proposed amendments to the Vance County Zoning Ordinance, has determined them to be consistent with the land use plan, and has provided a recommendation for their approval.

**WHEREAS**, the proposed amendments provide additional protections for property owners and citizens of the county while maintaining an environment conducive to economic development; and

**NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS, that:**

- A. The amendments presented are consistent with the county land use plan by conserving, protecting and encouraging the wise and prudent use of Vance County's natural and cultural resources.

B. The Vance County Zoning Ordinance be amended as follows (deletions as ~~strike~~throughs, additions shown as underlined text):

**Add to Section 3, Permitted Use Table, under INDUSTRIAL USES:**

|                                                                          | AR        | R30      | R20      | R10      | RMHC     | HC       | GC       | LI       | IM        | EIA       | OI       | OS       | WOZ      |           |
|--------------------------------------------------------------------------|-----------|----------|----------|----------|----------|----------|----------|----------|-----------|-----------|----------|----------|----------|-----------|
| INDUSTRIAL USES                                                          |           |          |          |          |          |          |          |          |           |           |          |          |          |           |
| <u>Land Clearing Inert Debris Landfill, Minor (less than 2 acres)</u>    | <u>CU</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>CU</u> | <u>CU</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>CU</u> |
| <u>Land Clearing Inert Debris Landfill, Major (greater than 2 acres)</u> | <u>CU</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>CU</u> | <u>CU</u> | <u>X</u> | <u>X</u> | <u>X</u> | <u>CU</u> |

**Change Section 6.10 (G) ~~Landfill (Demolition or Sanitary)~~ Landfill (Demolition, Sanitary, Land Clearing Inert Debris)**

**Added to Section 6.10 (G) 3. a. and b. as stated below:**

2. Distance Requirements (~~Only applies to Demolition or Sanitary Landfills~~): The landfill or any structure must be a minimum of one thousand (1,000) feet from any residential structure on surrounding properties. An owner occupied residence on the property of the tract is allowed. All buildings, including accessory garages or storage buildings, shall be set back a minimum of one hundred (100) feet from all property lines and street rights-of-way.
3. Licensing Requirements
- a. LCID (Land Clearing Inert Debris) Landfills minor, under two acres, require a copy of the Facility Plan approved by NCDEQ to be filed with the county planning department. Landfills major, greater than two acres, require a copy of the licensing issued by the North Carolina Division of Waste Management to be filed with the county planning department.
- b. LCID (Land Clearing Inert Debris) landfill facilities may not operate prior to 7:00 a.m. or after 7:00 p.m. unless allowed by the county manager in responding to excess debris resulting from a natural disaster.

**Added to Section 12, the following definition: “Landfill, Land Clearing Inert Debris, (LCID) minor”, A landfill facility, less than two acres, for the land disposal of land clearing waste, concrete, brick, concrete block, uncontaminated soil, gravel and rock, untreated and unpainted wood, and yard trash as defined in 15A NCAC 13B.0101.**

**Added to Section 12, the following definition: “Landfill, Land Clearing Inert Debris, (LCID) major”, A landfill facility, greater than two acres, for the land disposal of land clearing waste, concrete, brick, concrete block, uncontaminated soil, gravel and rock, untreated and unpainted wood, and yard trash., as defined in 15A NCAC 13B.0101**

**Adopted this the 7<sup>th</sup> day of October, 2019.**

**ATTEST:**

Archie B. Taylor, Jr. (signed)  
Archie B. Taylor, Jr. Chairman  
Vance County Board of Commissioners

Kelly H. Grissom (signed)  
Kelly H. Grissom  
Clerk to the Board

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As advertised, a public hearing was held to receive citizen input on a proposed amendment to the Vance County Flood Damage Prevention Ordinance to include updates as required by FEMA. As there was no one present who wished to speak on this matter, Chairman Archie B. Taylor, Jr. declared the public hearing closed.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to approve the following ordinance amending the Vance County Flood Damage Prevention Ordinance.

. . . . .

**ORDINANCE AMENDING THE VANCE COUNTY  
FLOOD DAMAGE PREVENTION ORDINANCE**

**WHEREAS**, Vance County joined the National Flood Insurance Program and began enforcing a Flood Damage Prevention Ordinance on September 2, 1997; and

**WHEREAS**, the State of North Carolina Division of Emergency Management, Floodplain Management Branch, in cooperation with the Federal Emergency management Agency (FEMA), has updated portions of the Vance County Flood Insurance Rate Maps and Flood Insurance Study; and

**WHEREAS**, pursuant to the NFIP regulations, an appeal and protest period was provided and has elapsed; and

**WHEREAS**, Vance County, as a condition of eligibility in the NFIP, must adopt the revised maps, study, and ordinance by December 6, 2019; and

**WHEREAS**, The Board feels that the proposed amendment is necessary in order to provide protection to property owners and businesses from the dangers of flooding.

**NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF COUNTY COMMISSIONERS**, that:

A. The Vance County Flood Damage Prevention Ordinance be amended as follows (additions shown in underlined print, deletions shown with strike through):

**1. AMEND Article 1, Section D adding the following:**

- (8) To minimize damage to private and public property due to flooding;
- (9) To make flood insurance available to the community through the National Flood Insurance Program;
- (10) To maintain the natural and beneficial functions of floodplains;

**2. AMEND Article 2. DEFINITIONS as follows:**

**Alteration of a watercourse** means a dam, impoundment, channel relocation, change in channel alignment, channelization, or change in cross-sectional area of the channel or the channel capacity, or any other form of modification which may alter, impede, retard or change the direction and/or velocity of the riverine flow of water during conditions of the base flood.

**Area of Shallow Flooding:** means a designated Zone AO or AH on a community's Flood Insurance Rate Map (FIRM) with base flood depths determined to be from one (1) to three (3) feet. These areas are located where a clearly defined channel does not exist, where the path of flooding is unpredictable and indeterminate, and where velocity flow may be evident.

~~**Breakaway Wall:** means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces without causing damage to the elevated portion of the building or the supporting foundation system.~~

**Design Flood:** See Regulatory Flood Protection Elevation.

**Development Activity** means any activity defined as Development which will necessitate a Floodplain Development Permit, This includes buildings, structures, and non-structural items, including (but not limited to) fill, bulkheads, piers, pools, docks, landings, ramps, and erosion control/stabilization measures.

**Digital Flood Insurance Rate Map (DFIRM)** means the digital official map of a community, issued by the Federal Emergency management Agency (FEMA), on which both the Special Flood Hazard Areas and the risk premium zones applicable to the community are delineated.

**Existing building and existing structure** means any building and/or structure for which the “start of construction” commenced before date the community’s entered into the National Floodplain Insurance Program.

**Flood-resistant material** means any building product (material, component or system) capable of withstanding direct and prolonged contact (minimum 72 hours) with floodwaters without sustaining damage that requires more than lo-cost cosmetic repair. Any material that is water-soluble or is not resistant to alkali or acid in water, including normal adhesives for above grade use, is not flood-resistant. Pressure-treated lumber or naturally decay-resistant lumbars are acceptable flooring materials. Sheet-type flooring coverings that restrict evaporation from below and materials that are impervious, but dimensionally unstable are not acceptable. Materials that absorb or retain water excessively after submergence are not flood-resistant. Please refer to Technical Bulletin 2, Flood Damage-Resistant Materials Requirements, and available from the FEMA. Class 4 and 5 materials, referenced therein, are acceptable flood-resistant materials.

**Floodway**: means the channel of a river or other watercourse, including the area above a bridge or culvert when applicable, and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one (1) foot.

**Floodway Encroachment** analysis means an engineering analysis of the impact that a proposed encroachment into a floodway or non-encroachment area is expected to have on the floodway boundaries and flood levels during the occurrence of the base flood discharge. The evaluation shall be prepared by a qualified North Carolina licensed engineer using standard engineering methods and models.

**Letter of Map Change (LOMC)** means an official determination issued by FEMA that amends or revises an effective Flood Insurance Rate Map or Flood Insurance Study. Letters of Map Change include:

- (a) **Letter of Map Amendment (LOMA)**: An official amendment, by letter, to an effective National Flood Insurance Program Map. A LOMA is based on technical data showing that a property had been inadvertently mapped as being in the floodplain, but is actually on natural high ground above the base flood elevation. A LOMA amends the current effective Flood Insurance Rate Map and establishes that a specific property, portion of a property or structure is not located in a special flood hazard area.
- (b) **Letter of Map Revision (LOMR)**: A revision based on technical data that may show changes to flood zones, flood elevations, special flood hazard area boundaries and floodway delineations, and other planimetric features.
- (c) **Letter of Map Revision Based on Fill (LOMR-F)**: A determination that a structure or parcel of land has been elevated by fill above the BFE and is, therefore, no longer located within the special flood hazard area. In order to qualify for this determination, the fill must have been permitted and placed in accordance with the community’s floodplain management regulations.
- (d) **Conditional Letter of Map Revision (CLOMR)**: A formal review and comment as to whether a proposed project complies with the minimum NFIP requirements for such projects with respect to delineation of special flood hazard areas. A DLOMR does not revise the effective Flood Insurance Rate Map or Flood Insurance Study; upon submission and approval of certified as-built documentation, a Letter of Map Revision may be issued by FEMA to revise the effective FIRM.

**Light Duty Truck** means any motor vehicle rated at 8,500 pounds Gross Vehicular Weight Rating or less which has a vehicular curb weight of 6,000 pounds or less and which has a basic vehicle frontal area of 45 square feet or less as defined in 40 CFR 86..082-2 and is:

- (a) Designed primarily for purposes of transportation of property or is a derivation of such a vehicle, or
- (b) Designed primarily for transportation of persons and has a capacity of more than 12 persons; or
- (c) Available with special features enabling off-street or off-highway operation and use.

**Lowest Adjacent Grade (LAG)** means the lowest elevation of the ground, sidewalk or patio slab immediately next to the building, or deck support, after completion of the building.

**Map Repository:** means the location of the official flood hazard data to be applied for floodplain management. It is a central location in which flood data is stored and managed; in North Carolina, FEMA has recognized that the application of digital flood hazard data products carry the same authority as hard copy products. Therefore, the NCEM's Floodplain Mapping Program websites house current and historical flood hazard data. For effective flood hazard data the NC FRIS website (<http://Fris.NC.GOV/FRIS>) is the map repository, and for historical flood hazard data the FloodNC website (<http://FLOOD.NC.GOV/NCFLOOD>) is the map repository.

**Mean Sea Level:** means, for purposes of this ordinance, the National Geodetic Vertical Datum (NGVD) as corrected in 1929, the North American Vertical Datum (NAVD) as corrected in 1988, or other vertical control datum used as a reference for establishing varying elevations within the floodplain, to which Base Flood Elevations (BFEs) shown on a FIRM are referenced. Refer to each FIRM panel to determine datum used.

**Post-FIRM:** means construction or other development for which the "start of construction" occurred on or after the effective date of the initial Flood Insurance Rate Map for the site (initial FIRM for Vance County - Unincorporated Area is July 16, 1991, revised/updated FIRM April 16, 2013).

**Pre-FIRM:** means construction or other development for which the "start of construction" occurred before the effective date of the initial Flood Insurance Rate Map for the site (initial FIRM for Vance County - Unincorporated Area is July 16, 1991, revised/updated FIRM April 16, 2013).

**Recreational Vehicle (RV):** means a vehicle, which is:

- (a) built on a single chassis;
- (b) 400 square feet or less when measured at the largest horizontal projection;
- (c) designed to be self-propelled or permanently towable by a light duty truck; and
- (d) designed primarily not for use as a permanent dwelling, but as temporary living quarters for recreational, camping, travel, or seasonal use.
- (e) Is fully licensed and ready for highway use.

**Temperature Controlled:** means having the temperature regulated by a heating and/or cooling system, built-in or appliance.

**Water Surface Elevation (WSE):** means the height, in relation to NAVD of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas.

### 3. AMEND Article 3 as follows:

#### SECTION B. BASIS FOR ESTABLISHING THE SPECIAL FLOOD HAZARD AREAS.

The Special Flood Hazard Areas are those identified under the Cooperating Technical State (CTS) agreement between the State of North Carolina and FEMA in its Flood Insurance Study (FIS) and its accompanying Flood Insurance Rate Maps (FIRM), for Vance County dated April 16, 2013, which are adopted by reference and declared to be a part of this ordinance.

Special Flood Hazard Areas also include those identified by Vance County in its FIRMS, dated April 16, 2013 which with accompanying data are adopted by reference and declared to be part of this ordinance. Within the identified Special Flood Hazard Areas the provision of this ordinance applies to new construction, as defined in this document, dated December 6, 2019 for Vance County and associated DFIRM panels, including any digital data developed as part of the FIS, which are adopted by reference and declared a part of this ordinance. Future revisions to the FIS and DFIRM panels that do not change flood hazard data within the jurisdictional authority of Vance County are also adopted by reference and declared a part of this ordinance. Subsequent Letter of Map Revisions (LOMRs) and/or Physical Map Revisions (PMRs) shall be adopted within 3 months.

## SECTION H. PENALTIES FOR VIOLATION

Violation of the provisions of this ordinance or failure to comply with any of its requirements, including violation of conditions and safeguards established in connection with grants of variance or special exceptions, shall constitute a Class 1 misdemeanor pursuant to NC G.S. § 143-215.58. Any person who violates this ordinance or fails to comply with any of its requirements shall, upon conviction thereof, be fined not more than \$100.00 ~~\$50.00~~ or imprisoned for not more than thirty (30) days, or both. Each day such violation continues shall be considered a separate offense. Nothing herein contained shall prevent Vance County from taking such other lawful action as is necessary to prevent or remedy any violation.

### 4. AMEND Article 4 as follows:

#### SECTION A. DESIGNATION OF FLOODPLAIN ADMINISTRATOR

The Director of the Planning and Development Department or his/her designee, hereinafter referred to as the "Floodplain Administrator" is hereby appointed to administer and implement the provisions of this ordinance. In instances where the Floodplain Administrator receives assistance from others to complete tasks to administer and implement this ordinance, the Floodplain Administrator shall be responsible for the coordination and community's overall compliance with the National Flood Insurance Program and the provisions of this ordinance.

### 5. AMEND Article 4, Section B (1) (b) as follows:

- i) Elevation in relation to ~~mean-sea-level~~ NAVD 1988 of the proposed reference level (including basement) of all structures;
- ii) Elevation in relation to ~~mean-sea-level~~ NAVD 1988 to which any non-residential structure in Zone AE, A or AO will be flood-proofed; and
- iii) Elevation in relation to ~~mean-sea-level~~ NAVD 1988 to which any proposed utility systems will be elevated or flood proofed;

### 6. AMEND Article 4, Section B (2) as follows:

- (a) A complete description of all the development to be permitted under the floodplain development permit. (e.g. house, garage, pool, septic, bulkhead, cabana, pier, bridge, mining, dredging, filling, grading, paving, excavation or drilling operations, or storage of equipment or materials, etc.).
- (f) A statement that no fill material or other development shall encroach into the floodway or non-encroachment area of any watercourse, ~~as applicable~~ unless the requirements of Article 5, Section F have been met.

### 7. AMEND Article 4, Section B (3) (a) as follows:

- i) An Elevation Certificate (FEMA Form 81-31 ~~086-0-33~~) is required prior to the actual start of any new construction. It shall be the duty of the permit holder to submit to the Floodplain Administrator a certification of the elevation of the reference level, in relation to ~~mean-sea-level~~ NAVD 1988. The Floodplain Administrator shall review the certificate data submitted. Deficiencies detected by such review shall be corrected by the permit holder prior to the beginning of construction. Failure to submit the certification or failure to make required corrections shall be cause to deny a floodplain development permit.

### 8. AMEND Article 4, Section B (3) (b) as follows:

~~If non-residential floodproofing is used to meet the regulatory flood protection elevation requirements, a Floodproofing Certificate (FEMA Form 81-65), with supporting data and an operational plan, is required prior to the actual start of any new construction. It shall be the duty of the permit holder to submit to the Floodplain Administrator a certification of the floodproofed design elevation of the reference level and all attendant utilities, in relation to mean-sea-level. Floodproofing certification shall be prepared by or under the direct supervision of a professional engineer or architect and certified by same. The Floodplain Administrator shall review the certificate data and the operational plan. Deficiencies detected by such review shall be corrected by the applicant prior to permit approval. Failure to submit the certification or failure to make required corrections shall be cause to deny a floodplain development permit. Failure to construct in accordance with the certified design shall be cause to withhold the issuance of a Certificate of Compliance/Occupancy.~~

A final Finished Construction Floodproofing Certificate (FEMA Form 81-65), with supporting data, an operational plan, and an inspection and maintenance plan are required prior to the issuance of a Certificate of Compliance/Occupancy. It shall be the duty of the permit holder to submit to

the Floodplain Administrator a certification of the floodproofed design elevation of the reference level and all attendant utilities, in relation to NAVD 1988. Floodproofing certificate shall be prepared by or under the direct supervision of a professional engineer or architect and certified by same. The Floodplain Administrator shall review the certificate data, the operational plan, and the inspection and maintenance plan. Deficiencies detected by such review shall be corrected by the applicant prior to Certificate of Occupancy. Failure to submit the certification or failure to make required corrections shall be cause to deny a Floodplain Development Permit. Failure to construct in accordance with the certified design shall be cause to deny a Certificate of Compliance/Occupancy.

**9. ADD the following as Article 4, Section B (4):**

**(4) Determinations for existing buildings and structures.**

For applications for building permits to improve buildings and structures, including alterations, movement, enlargement, replacement, repair, change of occupancy, additions, rehabilitations, renovations, substantial improvements, repairs of substantial damage, and other improvement of or work on such buildings and structure, the Floodplain Administrator, in coordination with the Building Official, shall:

- (a) Estimate the market value, or require the applicant to obtain an appraisal of the market value prepared by a qualified independent appraiser, of the building or structure before the start of construction of the proposed work; in the case of repair, the market value of the building or structure shall be the market value before the damage occurred and before any repairs are made;
- (b) Compare the cost to perform the improvement, the cost to repair a damaged building to its pre-damaged condition, or the combined costs of improvements and repairs, if applicable, to the market value of the building or structure;
- (c) Determine and document whether the proposed work constitutes substantial improvement or repair of substantial damage; and
- (d) Notify the applicant if it is determined that the work constitutes substantial improvement or repair of substantial damage and that compliance with the flood resistant construction requirements of the NC Building Code and this ordinance is required.

**10. AMEND Article 4, Section D (5) as follows:**

Failure to Comply with Order: If the owner of a building or property fails to comply with an order to take corrective action for which no appeal has been made or fails to comply with an order of the governing body following an appeal, the owner shall be guilty of a Class 1 misdemeanor pursuant to NC G.S. § 143-215.58 and shall be punished at the discretion of the court.

**11. AMEND Article 5, Section A as follows:**

- (2) All new construction and substantial improvements shall be constructed with materials and utility equipment resistant to flood damage in accordance with the FEMA Technical Bulletin 2, Flood Damage-Resistant Materials Requirements.**
- (4) Electrical, heating, ventilation, plumbing, air conditioning equipment, and other service facilities shall be ~~designed and/or located at or above the Regulatory Flood Protection Elevation~~ or designed and installed so as to prevent water from entering or accumulating within the components ~~during conditions of flooding to the Regulatory Flood Protection Elevation~~ during the occurrence of the base flood. These include, but are not limited to, HVAC equipment, water softener units, bath/kitchen fixture, ductwork, electric/gas meter panels/boxes, utility/cable boxes, hot water heaters, and electric outlets/switches.**
  - (a) Replacements part of a substantial improvement, electrical, heating, ventilation, plumbing, air conditioning equipment, and other service equipment shall also meet the above provisions.
  - (b) Replacements that are for maintenance and not part of a substantial improvement, may be installed at the original location provided the addition and/or improvements



only comply with the standards for new construction consistent with the code and requirements for the original structure.

- ~~(8) Any alteration, repair, reconstruction, or improvements to a structure, which is in compliance with the provisions of this ordinance, shall meet the requirements of “new construction” as contained in this ordinance.~~

**12. AMEND Article 5, Section B as follows:**

- (2) Non-Residential Construction. New construction and substantial improvement of any commercial, industrial, or other non-residential structure shall have the reference level, including basement, elevated no lower than the regulatory flood protection elevation, as defined in Article 2 of this ordinance. Structures located in A, AE, AH, AO, and ~~A99~~ A1-30 Zones may be floodproofed to the regulatory flood protection elevation in lieu of elevation provided that all areas of the structure, together with attendant utility and sanitary facilities, below the regulatory flood protection elevation are watertight with walls substantially impermeable to the passage of water, using structural components having the capability of resisting hydrostatic and hydrodynamic loads and the effect of buoyancy. For AO Zones, the floodproofing elevation shall be in accordance with Article 5, Section H(3) G(2). A registered professional engineer or architect shall certify that the floodproofing standards of this subsection are satisfied. Such certification shall be provided to the Floodplain Administrator as set forth in Article 4, Section B(3), along with the operational plan and the inspection and maintenance plans.
- (5) (d) Any combination of repair, reconstruction, rehabilitation, addition or improvement of a building or structure taking place during one (1) year period, the cumulative cost of which equals or exceeds 50 percent of the market value of the structure before the improvement or repair is started must comply with the standards for new construction. For each building or structure, the one year period begins on the permit issuance date for the improvement or repair of the building or structure subsequent to the effective date of this ordinance. Substantial damage also means flood related damage sustained by a structure on two separate occasions during a 10-year period for which the cost of repairs at the time of each such flood event, on the average equals or exceeds 25 percent of the market value of the structure before the damage occurred. If the structure has sustained substantial damage, any repairs are considered substantial improvement regardless of the actual repair work performed. The requirement does not, however, include either:
- (i) Any project for improvement of a building required to correct existing health, sanitary or safety code violations identified by the building official and that are the minimum necessary to assume safe living conditions.
  - (ii) Any alteration of a historic structure provided that the alteration will not preclude the structures continued designation as a historic structure.
- (6) Recreational Vehicles. Recreational vehicles shall either:
- ~~a. be on site for fewer than 180 consecutive days and be fully licensed and ready for highway use (a recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities, and has no permanently attached additions); or~~
  - ~~b. meet all the requirements for new construction.~~
- a. Temporary Placement
    - (i) Be on site for fewer than 180 consecutive days; or
    - (ii) Be fully licensed and ready for highway use. (Recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities, and has no permanently attached additions.)
  - b. Permanent Placement. Recreational vehicles that do not meet the limitations of Temporary Placement shall meet all the requirements for new construction.
- (9) Tanks. When gas and liquid storage tanks are to be placed within a Special Flood Hazard Area, the following criteria shall be met:
- a. Underground tanks. Underground tanks in flood hazard areas shall be anchored to prevent flotation, collapse or lateral movement from hydrodynamic and hydrostatic



loads during conditions of the design flood, including the effects of buoyancy assuming the tank is empty;

- b. Above-ground tanks, elevated. Above-ground tanks in flood hazard areas shall be elevated to or above the Regulatory Flood Protection Elevation on a supporting structure that is designed to prevent flotation, collapse or lateral movement during condition of the design flood. Tank-supporting structures shall meet the foundation requirements of the applicable flood hazard area;
- c. Above-ground tanks, not elevated. Above-ground tanks that do not meet the elevation requirements of Article 5, Section B (2) of the Article shall be permitted in flood hazard areas provided the tanks are designed, constructed, installed, and anchored to resist all flood-related and other loads, including the effects of buoyancy, during conditions of the design flood and without release of contents in the floodwaters or infiltration by floodwaters into the tanks. Tanks shall be designed, constructed, installed, and anchored to resist the potential buoyant and other flood forces acting on an empty tank during design flood conditions.
- d. Tank inlets and vents. Tank inlets, fill openings, outlets and vents shall be:
  - (i) At or above the Regulatory Flood Protection Elevation or fitted with covers designed to prevent the inflow of floodwater or outflow of the contents of the tanks during conditions of the design flood; and
  - (ii) Anchored to prevent lateral movement resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy, during conditions of the design flood.

(10) Other Development.

- a. Fences in regulated floodways and NEAs that have the potential to block the passage of floodwaters, such as stockade fences and wire mesh fences, shall meet the limitations of Article 5, Section F of this ordinance.
- b. Retaining walls, sidewalks and driveways in regulated floodways and NEAs. Retaining walls and sidewalks and driveways that involve the placement of fill in regulated floodways shall meet the limitations of Article 5, Section F of this ordinance.
- c. Roads and watercourse crossings in regulated floodways and NEAs. Roads and watercourse crossings, including roads, bridges, culverts, low-water crossings and similar means for vehicles or pedestrians to travel from one side of a watercourse to the other side, that encroach into regulated floodways shall meet the limitations of Article 5, Section F of this ordinance.

**13. AMEND Article 5 to add a Section H as follows:**

Section H. STANDARDS FOR AREAS OF SHALLOW FLOODING (ZONE AH)

Located within the Special Flood Hazard Areas established in Article 3, Section B, are areas designated as shallow flooding areas. These areas are subject to inundation by 1-percent-annual-chance shallow flooding (usually areas of ponding) where average depths are one (1) to three (3) feet. Base Flood Elevations are derived from detailed hydraulic analyses are shown in this zone. In addition to Article 5, Sections A and B, all new construction and substantial improvements shall meet the following requirements:

- (1) Adequate drainage paths shall be provided around structures on slopes, to guide floodwaters around and away from proposed structures.

**14. AMEND Article 6 to add a Section C as follows:**

SECTION C. SEVERABILITY

If any section, clause, sentence or phrase of the Ordinance is held to be invalid or unconstitutional by any court of competent jurisdiction, then said holding shall in no way effect the validity of the remaining portions of this Ordinance.

SECTION CD. EFFECTIVE DATE.

SECTION DE. ADOPTION CERTIFICATION.

B. The above amendments are effective upon adoption of this ordinance.

Adopted this 7<sup>th</sup> day of October, 2019.

Archie B. Taylor, Jr. (signed)  
Archie B. Taylor, Jr., Chairman  
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)  
Kelly H. Grissom  
Clerk to the Board

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Water District Board

Chairman Archie B. Taylor, Jr. called the Water District Board to order.

County Manager Jordan McMillen stated that the committee (Wilder[C], Brummitt, & Taylor) met prior to the board meeting to discuss a change order for Phase 3 of the water project, possible incentives for availability customers, and refunds for 16 sign-ups in the Epsom area.

*Change Order #3.* Change Order #3 includes three items: Item #1 - a deduction of \$63,082.80 for under-runs; Item #2 - an addition of \$4,305 for additional materials along NC Hwy 39 due to wide DOT right-of-ways; and Item #3 - an addition of \$68,683 for additional work on Foster Road Ext. The committee was in favor of proceeding with Item #1 and #3, but asked the engineer to review Item #2 further.

Motion was made by Commissioner Gordon Wilder to approve Change Order #3 (excluding Item #2) in the amount of \$5,600.20 with an additional 60 days of construction. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

*Incentives.* The committee reviewed a request from an availability customer seeking an incentive from the county of relief of the availability fee if they were to hook on to the system. The committee directed staff to draft an incentive plan for review.

*Refunds.* The committee discussed and recommended issuing refunds to 16 customers along Epsom Rocky Ford Road and NC 39 Hwy South. These residents signed up for water, but lines will not be installed in these areas. The committee discussed pursuit of additional grants to increase utilization by extending the system and making sure that those who receive their refunds will have that same signup fee “reserved” into the future should water be made available to them.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Gordon Wilder, vote unanimous, to issue refunds in Phase 3 for those roads as presented where

water will not be available for the foreseeable future and reserve the \$125 sign-up fee for those who have already signed up.

Mr. Logan Parsons, LKC Engineering, provided an update Phase 3 and stated that all water lines have been installed – five and a half miles of pipe. The projected completion timeline is two months.

Mr. Dave Strum was introduced as the county's new point of contact for Envirolink.

The August 2019 monthly operations report was presented to the board for information. Chairman Taylor adjourned the water district board.

District Attorney Mike Waters, Sheriff Curtis Brame, and Police Chief Marcus Barrow were next on the agenda and provided an update on law enforcement. They presented the following statistics for Operation 310 which took place September 9 – 11, 2019.

- 31 arrest made
- 63 charges cleared
- 36 felony charges
- 27 misdemeanor charges
- 8 firearms recovered
- 99 high risk searches attempted
- 43 high risk searches conducted

Sheriff Brame stated that Vance County is the center hub of narcotic trades, specifically heroin. This mission focused on drug traffickers and was very successful. This is a credit to the great relationship between law enforcement and the district attorney's office. Similar operations to this will be planned in the future. Mr. Waters stated that Vance County is extremely fortunate to have law enforcement units that share the same philosophy with respect to what the best strategy is for enforcement and reducing narcotics.

The group asked for the board's support with the mental health crisis in the county which causes jail overcrowding. They also discussed short-staffing in the Sheriff's Office and Police Department and lack of space for evidence storage.

District Attorney Mike Waters updated the board on staffing and stated that there are 15 assistant district attorneys now on board, which is an increase of five attorneys. Staffing is still about 85% of the workload. He noted that the oldest homicide case is only 18 months old.

The board thanked Mr. Waters, Sheriff Brame and Chief Barrow for the update.

#### Committee Reports and Recommendations

*Technology Committee - Public Wi-Fi.* Commissioner Dan Brummitt reported that the committee (Brummitt[C], Taylor & Feimster) met with Rob Cranwell from Open Broadband, LLC on Wednesday, September 11, 2019 to discuss and determine final locations for proceeding with

public Wi-Fi. The areas discussed included an existing water tank in Kittrell, the shopping and retail area near I-85 and Dabney Drive, and the downtown Henderson area. Open Broadband recommended moving away from the shopping and retail area as the necessary infrastructure was not in place making it cost prohibitive to serve the area. The committee then focused their discussion on the downtown area and determined a service area between Rose Avenue to Orange Street to include Breckenridge Street and Chestnut Street around the library and McGregor Hall. The committee desires to partner with the city for providing coverage in the downtown area and asked staff to discuss joint participation with the city. The committee asked Open Broadband to prepare final coverage maps and costs based on committee feedback. Following the meeting, Open Broadband presented a cost of \$600/month for Kittrell and \$2,000/month for the downtown area with a one-time install fee of \$4,000 for downtown. The Kittrell area would be served with a connection of up to 200 Megabits per second with the downtown area served by a gigabit capacity service. The committee intends to review a contract at its next meeting.

*Public Safety Committee - Fire Response District Changes.* Commissioner Gordon Wilder reported that the committee (Wilder[C], Brummitt, & Faines) met with the fire association during its meeting on Monday, September 16, 2019 at the Epsom Volunteer Fire Department. The meeting provided an opportunity for the fire chiefs to view maps of potential areas for changing fire district boundaries and gave the committee the opportunity to seek input from the chiefs. The association acknowledged that any redistricting should occur after the departments complete their ISO testing in October. The committee chair suggested meetings with groups of chiefs for adjoining districts to seek their direct input as to whether the dividing lines should be changed. It is anticipated that these meetings could occur in mid-October. Following the meeting, each volunteer department was provided with a map showing the overlaps in districts to facilitate discussion for each volunteer department.

*Human Resources Committee - Vehicle Use Policy.* Commissioner Carolyn Faines reported that the committee (Faines[C], Taylor, & Wilder) met with HR Staff on Tuesday, September 24, 2019 to discuss and review a draft “Use of County Vehicles” Policy. The purpose of the policy is to regulate the operation of county vehicles assigned to employees in the performance of their duties as well as the use of personally owned vehicles when used on county business. The committee suggested several edits during their detailed review and are in favor of moving forward with the policy.

Commissioner Dan Brummitt suggested that Class A licenses should be included in the policy as well as adding identification to all county vehicles by decal and number.

Motion was made by Commissioner Carolyn Faines, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to approve the Use of County Vehicles policy to include the addition of Class A licenses and vehicle identification mentioned.

*Human Resources Committee - Employee Appreciation Breakfast.* Commissioner Faines stated that the committee was informed and discussed an upcoming employee appreciation breakfast being planned by the Employee Engagement Team. The breakfast is scheduled for December 10<sup>th</sup> from 8:00 a.m. to 10:00 a.m. at Hwy 39 Restaurant.

*Properties Committee - REO Property Matters.* Commissioner Brummitt stated that the committee (Brummitt[C], Taylor, & Wilder) met on Monday, September 30, 2019 and discussed property matters related to two jointly owned properties (725 Roberson Street and 709 Arch Street).

- 725 Roberson Street (Parcel 0068 01014) - currently leased by the City and County to Green Rural Redevelopment at no cost for use as a community garden. Recently the City received two offers (one for \$1,000 and one for \$1,800) to purchase the property once the existing lease expires in December and the City Council has taken action to begin the upset bid process to sell the property subject to county approval. The City is willing to handle the legal work if the county conveys the property to the city.
- 709 Arch Street (Parcels 0091 01002 and 0091 01021) – The City has agreed to provide this property to Mr. Omega Perry as a part of its Homestead Program which is designed to promote homeownership by recycling jointly owned properties. The program will require Mr. Perry to bring the property up to standards (estimated renovation cost of \$28,000) and make the property his principal residence for a period of not less than three years.

The committee discussed conveying both properties to the City of Henderson to allow them to handle the upset bid process for 725 Roberson Street and to handle the necessary legal work for both properties. The committee asked staff to discuss with the city whether an access easement should be retained across the Arch Street property for the adjoining property also owned by the City and County. In subsequent conversations with the city, the intent is to convey two (both) parcels to Mr. Perry as the adjoining property has historically been associated with 709 Arch Street.

Motion was made by Commissioner Dan Brummitt to approve the conveyance of 725 Roberson Street and 709 Arch Street to the City of Henderson and authorize the chairman to execute any documents relative to the transaction. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

*Properties Committee - Dennis Building.* Commissioner Brummitt stated that the Committee was informed of a recent water leak in the basement of the Dennis Building and was

ensured staff is working with the insurance company to have the necessary asbestos removed and flooring reinstalled. The committee was also informed that staff is looking for solutions to prevent the deterioration of the four cast-iron lamp posts at the Dennis Building. Staff will provide estimated costs for removing and/or restoring the lamps once estimates are obtained. The committee discussed a recent request from the Elections Board to vacate the Dennis Building. During the discussion, the committee discussed the county's existing ownership and use of the building in light of existing and anticipated expenditures in the future. The committee asked staff to research whether the building is on or eligible for the national register and expressed an interest in holding onto and utilizing spaces more efficiently within the building. Due to additional state funding for Juvenile Justice, they are in need of 3-4 additional offices within the Building. The County Manager recommended moving Youth Services/Teen Court from the Dennis Building to an area adjacent to the gymnasium at Eaton Johnson to allow for additional space for Juvenile Justice. The committee mentioned the need to work within our financial means when considering any movement of departments or building renovations. The committee made no commitments to moving any departments from the building at the current time, but felt the overall space within the building could be better utilized.

County Manager Jordan McMillen noted that he found out last week that the building is on the historic registry and is also in the Opportunity Zone.

#### County Attorney's Report

*REO Properties – Bid Acceptance Resolutions.* County Attorney Jonathan S. Care noted that during previous meetings, the board of commissioners approved the public sale process for 719 N. Garnett Street – Parcel 0075 03005; 14 Colenda Lane - Parcel 0325A02011; Lot 4 Cedar Cove Road – Parcel 0593 01031; 3.4+/- acres off Wilkins Lane – Parcel 0111 03023; Lot off Wilkins Lane, – Parcel 0111 01018; and Lot at Pettigrew Street – Parcel 0103 06003. 719 N. Garnett Street received numerous upset bids, with the final bid of \$5,500. The board is now free to sell the properties or reject the offers.

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, to adopt the following resolutions accepting the bids for 719 N. Garnett Street – Parcel 0075 03005; 14 Colenda Lane - Parcel 0325A02011; Lot 4 Cedar Cove Road – Parcel 0593 01031; 3.4+/- acres off Wilkins Lane – Parcel 0111 03023; Lot off Wilkins Lane, – Parcel 0111 01018; and Lot at Pettigrew Street – Parcel 0103 06003.

. . . . .  
**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

**WHEREAS**, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**719 N. Garnett Street, Henderson, North Carolina 27537, Vance County Tax Department Parcel Number 0075 03005.**

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **July 4, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and an upset bid was received from Kevin Martinez-Galmiche in the amount of \$1,200.00; and

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **July 18, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and an upset bid was received from Tamer Attia in the amount of \$2,000.00; and

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **July 31, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and an upset bid was received from Kevin Martinez-Galmiche in the amount of \$2,750.00; and

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **August 15, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and an upset bid was received from Tamer Attia in the amount of \$3,750.00; and

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **August 23, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and an upset bid was received from Kevin Martinez-Galmiche in the amount of \$4,500.00; and

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **September 5, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and an upset bid was received from Tamer Attia in the amount of \$5,500.00; and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by **Tamer Attia** in the amount of **\$5,500.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 7<sup>th</sup> day of October, 2019.**

**Archie B. Taylor, Jr.** **(signed)**  
**Archie B. Taylor, Jr., Chairman**  
**Vance County Board of Commissioners**

**ATTEST:**

**Kelly H. Grissom** **(signed)**  
**Kelly H. Grissom, Clerk to the Board**



**WHEREAS**, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***September 12, 2019***, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***Josetter Royster*** in the amount of **\$1,053.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 7<sup>th</sup> day of October, 2019.**

**Archie B. Taylor, Jr.** (signed)  
**Archie B. Taylor, Jr., Chairman**  
**Vance County Board of Commissioners**

**ATTEST:**

**Kelly H. Grissom** (signed)  
**Kelly H. Grissom, Clerk to the Board**

**WHEREAS**, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on ***September 12, 2019***, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by ***Samantha Faison*** in the amount of **\$1,205.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 7<sup>th</sup> day of October, 2019.**

Archie B. Taylor, Jr. (signed)  
Archie B. Taylor, Jr., Chairman  
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)  
Kelly H. Grissom, Clerk to the Board

. . . . .

**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**3.4+/- acres off Wilkins Lane, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0111 03023.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **September 12, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by *Casim Noble* in the amount of **\$1,375.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 7<sup>th</sup> day of October, 2019.**

Archie B. Taylor, Jr. (signed)  
Archie B. Taylor, Jr., Chairman  
Vance County Board of Commissioners

ATTEST:

Kelly H. Grissom (signed)  
Kelly H. Grissom, Clerk to the Board

. . . . .

**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

WHEREAS, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**Lot off Wilkins Lane, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0111 01018.**

WHEREAS, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on **September 12, 2019**, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

WHEREAS, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by *Casim Noble* in the amount of **\$1,448.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 7<sup>th</sup> day of October, 2019.**

*Archie B. Taylor, Jr.* (signed)  
Archie B. Taylor, Jr., Chairman  
Vance County Board of Commissioners

**ATTEST:**

*Kelly H. Grissom* (signed)  
Kelly H. Grissom, Clerk to the Board

. . . . .

**RESOLUTION ACCEPTING BID FOR  
COUNTY OWNED REAL PROPERTY**

**WHEREAS**, the Vance County Board of County Commissioners received an offer for the purchase and sale of County owned real property, which is more particularly described below:

**Lot Pettigrew Street, Henderson, North Carolina 27536, Vance County Tax Department Parcel Number 0103 06003.**

**WHEREAS**, pursuant to NCGS 160A-269, a notice was published in the *Daily Dispatch* on *September 12, 2019*, stating that said offer had been received and that any person wishing to submit an upset bid should do so within 10 days; and

**WHEREAS**, no upset bids were received within the statutorily prescribed time period;

**THEREFORE, BE IT RESOLVED** by the Vance County Board of Commissioners, pursuant to NCGS 160A-269 that:

The bid submitted by *Edward Walter Buck II* in the amount of **\$1,173.00** subject to the terms and conditions contained in the submitted bid, attached hereto as Exhibit “A”, is hereby accepted for the property described herein and the Board’s Chairperson shall execute the documents necessary to complete the transfer of title to such property.

**Adopted this the 7<sup>th</sup> day of October, 2019.**

*Archie B. Taylor, Jr.* (signed)  
Archie B. Taylor, Jr., Chairman  
Vance County Board of Commissioners

**ATTEST:**

*Kelly H. Grissom* (signed)  
Kelly H. Grissom, Clerk to the Board

. . . . .

*REO Properties – New Offers.* Attorney Care stated that two offers had been received for Lot 3-A Spring Valley Road – Parcel 0201 01001 from Blue Ocean Partners, LLC in the amount of \$1,000 and from Edward Ray Faulkner, Jr. in the amount of \$1,100.

Motion was made by Commissioner Dan Brummitt to reject the \$1,000 offer from Blue Ocean Partners, LLC, accept the \$1,100 offer from Edward Ray Faulkner, Jr., and approve the following resolution authorizing the upset bid process for Lot 3-A Spring Valley Road. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

. . . . .

**RESOLUTION AUTHORIZING UPSET BID PROCESS  
FOR SALE OF REAL PROPERTY  
Lot 3-A Spring Valley Road, Henderson, NC 27537**

**WHEREAS**, Vance County owns certain real property with an address of **Lot 3-A Spring Valley Road, Henderson, North Carolina**, and more particularly described by the Vance County Tax Department as Parcel Numbers **0201 01001**; and,

**WHEREAS**, North Carolina General Statute §160A-269 permits the county to sell real property by upset bid, after receipt of an offer for the property; and,

**WHEREAS**, the County has received an offer to purchase the real property described herein above in the amount of **\$1,100.00** subject to the terms and conditions as included in the submitted offer to purchase bid, submitted by ***Edward Ray Faulkner, Jr.*** and,

**WHEREAS**, ***Edward Ray Faulkner, Jr.*** has paid the required deposit in the amount of **\$750.00** with their initial offer.

**THEREFORE, THE VANCE COUNTY BOARD OF COMMISSIONERS RESOLVES THAT:**

1. The Board of County Commissioners declares the real property described above surplus and authorizes its sale through the upset bid procedure of North Carolina General Statute §160A-269.
2. A notice of the proposed sale shall be published which shall describe the property and the amount of the offer and shall require any upset offer be subject to the same terms and conditions as contained therein except for the purchase price.
3. Any person may submit an upset bid to the Clerk to the Board of County Commissioners within 10 days after the notice of sale is published. Once a qualifying higher bid has been received, that bid will become the new offer.
4. If a qualifying upset bid is received, a new notice of upset bid shall be published, and shall continue to do so until a 10-day period has passed without any qualifying upset bid having been received. At that time, the amount of the final high bid shall be reported to the Board of County Commissioners.
5. A qualifying higher bid is one that raises the existing offer by the greater of \$750 or ten percent (10%) of the first \$1,000.00 of that offer and five percent (5%) of the remainder of the offer and is subject to the same terms and conditions of the previous bid.
6. A qualifying higher bid must also be accompanied by a deposit in the amount of the greater of \$750 or five percent (5%) of the bid, which may be made by cash, cashier's check or certified funds. The County will return the deposit of any bid not accepted and will return the bid of an offer subject to upset if a qualifying higher bid is received.
7. The terms of the final sale are that the Board of County Commissioners must approve the final high offer before the sale is closed and the buyer must pay with certified funds or wire transfer the bid amount and any other amounts as required pursuant to the terms and conditions of the bid at the time of closing, which shall be no later than 30 days following the approval by this Board of the final bid. The real property is sold in its current condition, as is, and

the County gives no warranty with respect to the usability of the real property or title. Title will be delivered at closing by a **Non Warranty Deed**, subject to exceptions for ad valorem taxes, assessments, zoning regulations, restrictive covenants, street easements, rights of others in possession and any other encumbrances of record. Buyer shall pay for preparation and recording of the Deed and revenue stamps.

8. The County reserves the right to withdraw the property from sale at any time before the final high bid is accepted **and the right to reject all bids at any time.**

9. If no qualifying upset bid is received, the Board of County Commissioners will accept or reject the bid submitted within 60 days after the close of the 10-day upset period.

**Adopted this the 7<sup>th</sup> day of October, 2019.**

**Archie B. Taylor, Jr. (signed)**  
**Archie B. Taylor, Jr., Chairman**  
**Vance County Board of Commissioners**

**ATTEST:**

**Kelly H. Grissom (signed)**  
**Kelly H. Grissom, Clerk to the Board**

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Consent Agenda

Motion was made by Commissioner Gordon Wilder, seconded by Commissioner Dan Brummitt, vote unanimous, to approve the following consent agenda items as presented: Budget Amendment #5, August 2019 Tax Refunds and Releases, departmental monthly reports, and the minutes of the September 9, 2019 regular meeting.

. . . . .

**Budget Amendment #5**  
**FY 2019-2020**  
**Animal Services**

| <b>Revenue Amendment Request</b>         | <b>Account Number</b> | <b>Revenue Increase (Decrease)</b> |
|------------------------------------------|-----------------------|------------------------------------|
| Fund Balance Appropriated                | 10-399-439900         | 56,365                             |
|                                          |                       |                                    |
| <b>Total Revenue Increase (Decrease)</b> |                       | <b>\$ 56,365</b>                   |

  

| <b>Expenditure Amendment Request</b>       | <b>Account Number</b> | <b>Expense Increase (Decrease)</b> |
|--------------------------------------------|-----------------------|------------------------------------|
| Capital Outlay: Generator and Installation | 10-599-500074         | 56,365                             |
|                                            |                       |                                    |
| <b>Total</b>                               |                       | <b>\$ 56,365</b>                   |

Purpose: Generator for animal services. This was a PO from FY 18-19. Revenue received from donations went into Fund Balance and was not expended. Due to GAAP rules, we are re-appropriating funds to pay contract.

Authorization: Vance County Board of Commissioners  
October 7, 2019

TAX OFFICE REFUND AND RELEASE REPORT FOR AUGUST 2019

| TAXPAYER NAME               | TAX YR | REAL   | PERSONAL | SOLID<br>WASTE<br>FEE | REASON           |
|-----------------------------|--------|--------|----------|-----------------------|------------------|
| RYDER TRUCK RENTAL INC 0637 | 2016   | 0      | 805.24   | 0                     | SITUS NOT VANCE  |
| RYDER TRUCK RENTAL INC 0637 | 2017   | 0      | 618.66   | 0                     | SITUS NOT VANCE  |
| RYDER TRUCK RENTAL INC 0637 | 2018   | 0      | 1613.19  | 0                     | PERS PROP BILLED |
| RYDER TRUCK RENTAL INC 0637 | 2018   | 0      | 600.36   | 0                     | SITUS NOT VANCE  |
| JONES WALTER EUGENE         | 2019   | 0      | 79.54    | 0                     | ADD SOLID WASTE  |
| JONES WALTER EUGENE         | 2019   | 0      | 67.30    | 105                   | ADD LATE LIST PE |
| JONES WALTER EUGENE         | 2019   | 0      | 67.30    | 105                   | PERS PROP BILLED |
| JONES WALTER EUGENE         | 2019   | 0      | 79.54    | 0                     | PERS PROP BILLED |
| JONES WALTER EUGENE         | 2019   | 0      | 71.24    | 0                     | ADD SOLID WASTE  |
| JONES WALTER EUGENE         | 2019   | 0      | 65.30    | 112                   | ADD LATE LIST PE |
| JONES WALTER EUGENE         | 2019   | 0      | 65.30    | 112                   | PERS PROP BILLED |
| JONES WALTER EUGENE         | 2019   | 0      | 71.24    | 0                     | ADD SOLID WASTE  |
| JONES WALTER EUGENE         | 2019   | 0      | 65.30    | 112                   | PERS PROP BILLED |
| AGUILAR JUAN CARLOS         | 2019   | 0      | 71.43    | 0                     | PERS PROP BILLED |
| BRANCH RICHARD W            | 2019   | 0      | 143.98   | 0                     | PERS PROP BILLED |
| BRANCH RICHARD W            | 2019   | 0      | 3.23     | 0                     | PERS PROP BILLED |
| CAMPBELL DAVID EARL JR      | 2019   | 0      | 3.23     | 0                     | PERS PROP BILLED |
| CHAMP MARY A & OTHERS       | 2019   | 224.58 | 0        | 0                     | CORRECT/GRANT EX |
| CHAMP MARY A & OTHERS       | 2019   | 224.58 | 0        | 0                     | CORRECT/GRANT EX |
| CHEEK HESSIE                | 2019   | 244.75 | 0        | 0                     | CORRECT/GRANT EX |
| CHEEK HESSIE                | 2019   | 72.02  | 0        | 0                     | CORRECT/GRANT EX |
| CHEEK ROBERT E              | 2019   | 0      | 0        | 112                   | PERS PROP BILLED |
| COHEN BARBARA G             | 2019   | 0      | 3.23     | 0                     | PERS PROP BILLED |
| COHEN BARBARA G             | 2019   | 0      | 3.23     | 0                     | PERS PROP BILLED |
| EASY LIVING PROPERTIES LLC  | 2019   | 0      | 34.26    | 0                     | CORRECT VALUE    |
| EDWARDS BILLY C             | 2019   | 369.09 | 0        | 0                     | REAL PROP - BILL |
| FINCH ANTHONY DALE HEIRS    | 2019   | 122.29 | 0        | 112                   | CORRECT/GRANT EX |
| FISHER ANTHONY E            | 2019   | 0      | 0        | 0                     | ADD SOLID WASTE  |
| FLUET TIM                   | 2019   | 0      | 42.97    | 0                     | PERS PROP BILLED |
| FLUET TIM                   | 2019   | 0      | 3.23     | 0                     | PERS PROP BILLED |
| HARRIS RANDY P              | 2019   | 148.06 | 0        | 0                     | VAL ADJ FOR PRES |
| HAWKINS MARGARET HEIRS      | 2019   | 173.12 | 0        | 0                     | CORRECT/GRANT EX |
| HERNANDEZ MARTHA B HEIRS    | 2019   | 321.23 | 0        | 0                     | CORRECT/GRANT EX |
| HICKS ALBERT                | 2019   | 0      | 4.95     | 0                     | PERS PROP BILLED |
| HOLLAND JONATHAN ROSS       | 2019   | 0      | 147.38   | 0                     | CORRECT VALUE    |
| HUFFINES TERRY LYNN         | 2019   | 0      | 8.11     | 0                     | PERS PROP BILLED |
| JONES JESSIE M HEIRS        | 2019   | 0      | 0        | 112                   | REMOVE SOLID WAS |
| JONES PEGGY ROSE WINTERS    | 2019   | 487.51 | 0        | 0                     | CORRECT/GRANT EX |
| LEYEN TERRY L               | 2019   | 440.55 | 0        | 0                     | CORRECT/GRANT EX |
| LIPSCOMB RICKEY THOMAS      | 2019   | 0      | 24.33    | 0                     | PERS PROP BILLED |
| LIPSCOMB RICKEY THOMAS      | 2019   | 0      | 5.17     | 0                     | PERS PROP BILLED |
| MEYER HAROLD                | 2019   | 0      | 221.25   | 0                     | PERS PROP BILLED |
| MITCHELL RAY                | 2019   | 314.53 | 0        | 112                   | PERS PROP BILLED |
| MOHAN THYVELIKAKATH         | 2019   | 0      | 323.82   | 0                     | PERS PROP BILLED |
| MOHAN THYVELIKAKATH         | 2019   | 0      | 3.23     | 0                     | PERS PROP BILLED |
| MOHAN THYVELIKAKATH         | 2019   | 0      | 3.23     | 0                     | PERS PROP BILLED |
| NORWOOD GARY L              | 2019   | 0      | 40.65    | 0                     | PERS PROP BILLED |
| NORWOOD TERESA WASHBURN     | 2019   | 244.75 | 0        | 0                     | CORRECT/GRANT EX |
| ODOM KIRBY                  | 2019   | 0      | 25.73    | 112                   | PERS PROP BILLED |

| TAXPAYER NAME              | TAX YR   | REAL    | PERSONAL | SOLID WASTE FEE | REASON           |
|----------------------------|----------|---------|----------|-----------------|------------------|
| OWEN STEVEN KNIGHT         | 2019     | 0       | 3.23     | 0               | INCORRECTLY BILL |
| PARKER ROBERT FREDRICK III | 2019     | 0       | 9.26     | 0               | PERS PROP BILLED |
| PERCY JERRY M              | 2019     | 0       | 6.95     | 0               | PERS PROP BILLED |
| PERK'S LAWN CARE INC       | 2019     | 0       | 256.27   | 0               | PERS PROP BILLED |
| PERK'S LAWN CARE INC       | 2019     | 0       | 0.80     | 0               | PERS PROP BILLED |
| PERK'S LAWN CARE INC       | 2019     | 0       | 0.36     | 0               | PERS PROP BILLED |
| PERK'S LAWN CARE INC       | 2019     | 0       | 16.17    | 0               | PERS PROP BILLED |
| ROYSTER VALERIE C          | 2019     | 990.53  | 0        | 0               | CORRECT/GRANT EX |
| SMITH JOHNNY               | 2019     | 0       | 15.22    | 0               | CORRECT VALUE    |
| THOMPSON DAVID DUANE       | 2019     | 0       | 56.20    | 0               | PERS PROP BILLED |
| TYSOR MICHAEL EDWIN        | 2019     | 0       | 117.47   | 0               | PERS PROP BILLED |
| WADE MEGAN R               | 2019     | 0       | 3.23     | 0               | PERS PROP BILLED |
| WHEELER LANE               | 2019     | 0       | 38.90    | 112             | PERS PROP BILLED |
| WRIGHT JACQUELINE HARRIS   | 2019     | 0       | 17.02    | 0               | PERS PROP BILLED |
|                            |          |         |          |                 |                  |
| TOTAL                      |          | 4377.59 | 5927.23  |                 |                  |
| GRAND TOTAL                | 10304.82 |         |          |                 |                  |

MONTHLY REPORTS: 911 Emergency Operations, Administrative Ambulance Charge-Offs, Cooperative Extension, EMS, Health Department, Human Resources, Information Technology, Parks and Recreation, Planning and Development, Tax Collections, and Veterans Service.

Miscellaneous

*Appointments.* The following appointments were presented to the Board for consideration:  
Vance County Appearance Commission – three year term  
Reappoint Benny Finch, Julie Booth, Rose Jarrell, and Katherine Williamson

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Dan Brummitt, vote unanimous, to approve the appointments as presented.

At this time, motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Dan Brummitt, vote unanimous, to enter into closed session to discuss a legal matter and contract negotiation.

Upon return to open session, motion was made by Commissioner Thomas S. Hester, Jr. that Vance County remain in negotiation class as it relates to the county’s opioid litigation. This motion was seconded by Commissioner Gordon Wilder and unanimously approved.

Motion was made by Commissioner Thomas S. Hester, Jr., seconded by Commissioner Dan Brummitt, vote unanimous, to approve the minutes of the September 9, 2019 closed session.



Motion was made by Commissioner Gordon Wilder to enter into closed session to discuss a personnel matter. This motion was seconded by Commissioner Thomas S. Hester, Jr. and unanimously approved.

Upon return to open session, and as there was no further business, motion was made by Commissioner Dan Brummitt, seconded by Commissioner Thomas S. Hester, Jr., vote unanimous, that the meeting be adjourned.

**Approved and signed November 4, 2019.**

**Archie B. Taylor, Jr. (signed)**  
**Archie B. Taylor, Jr., Chairman**